

**IN THE UNITED STATES DISTRICT COURT IN THE
MIDDLE DISTRICT OF FLORIDA
Tampa Division**

DAVIS MATTHEW,
Plaintiff,

V.

SHERIFF CHRIS NOCCO, in his
official capacity as Sheriff of Pasco
County, and Pasco County Sheriff's
Office,
Defendant.

Case No. 8:24-cv-02907

Amended Complaint (42 U.S.C. §
1983)

AMENDED COMPLAINT FOR VIOLATION OF CIVIL RIGHTS

UNDER 42 U.S.C. § 1983

I. INTRODUCTION

Plaintiff, Matthew Aaron Davis, Pro Se, hereby files this Complaint against the Pasco County Sheriff's Department and elected official in his official capacity Sheriff Chris Nocco ("Defendant") for violations of Plaintiff's Fourth and Fourteenth Constitutional rights under 42 U.S.C. § 1983, and demands a trial by jury on all matters triable. The Plaintiff alleges as follows:

II. JURISDICTION AND VENUE

1. This Court has jurisdiction under 28 U.S.C. § 1331 because this action arises under the deprivation of rights of the United States, specifically 42 U.S.C. § 1983, as applicable.
2. This Court has jurisdiction under 28 U.S.C. § 1343 for civil rights violations.
3. Venue is proper in the United States District Court for the Middle District of Florida, Tampa Division, under 28 U.S.C. § 1391(b) because the events giving rise to this claim occurred in Pasco County, Florida, which falls within this Court's jurisdiction.

III. PARTIES

4. Plaintiff, Matthew Aaron Davis, at all times relevant to this Complaint, was a resident of Pasco County, Zephyrhills, Florida and former Public Works First Responder (12403) for Pasco County, Florida.
5. Defendant, Sheriff Chris Nocco, is the elected Sheriff of Pasco County and is responsible for the policies, training, and conduct of the Pasco County Sheriff's Office and its deputies.

6. Defendant, Pasco County Sheriff's Department, is a governmental entity responsible for law enforcement operations within Pasco County, Florida acting under color of State law and is sued in its official capacity.

IV. FACTUAL ALLEGATION

7. On December 10, 2020, Plaintiff was arrested on charges of domestic battery as documented in case number 512020MM004755MMAXES in the Sixth Judicial Circuit Court in and of Pasco County Florida. He was lawfully present at his home at 6819 23rd St. Zephyrhills, FL. 33542.
8. Plaintiff was released on bond on December 12, 2020. The Plaintiff's mother paid and signed for a bondsman in the amount of \$100.
9. On February 11, 2021, all criminal charges were officially dropped. As the State Attorney's Office declined to pursue the domestic battery charges, and "no information" was filed in case number 512020MM004755MMAXES with the Sixth Judicial Circuit Court in and of Pasco County Florida..
10. Plaintiff was placed under a Florida State Attorney investigation on March 22, 2021 then incarcerated from July 30, 2022 till April 12, 2023 on unrelated charges. This investigation and time incarcerated should institute "tolling of the statue of limitations" in regards to this complaint.

V. CLAIMS FOR RELIEF..

Count I: Violation 42 U.S.C. § 1983 - Fourth Amendment

11. Plaintiff realleges and incorporates by reference paragraphs 1 through 10 as though fully set forth here in.
12. False arrest occurs when a person is unlawfully restrained against their will without legal justification.
13. The arrest of Plaintiff was without a valid warrant and/or without probable cause, violating Plaintiff's Fourth Amendment rights under the U.S. Constitution and protections under State Law,
14. Since the State Attorney declined to prosecute, this confirms that no legal basis existed for the arrest, further substantiating Plaintiff's claim.
15. As a direct and proximate result of Defendant's unlawful conduct, Plaintiff has suffered and continues to suffer harm, including the loss of familial association, loss of reputation, loss of property, mental anguish and emotional distress.
16. Defendant conduct was willful, wanton, and in reckless disregard of Plaintiff's constitutional rights, entitling Plaintiff to compensatory and punitive damages.

Count V: Violation 42 U.S.C. § 1983 - Fourth and Fourteenth Amendments

17. Plaintiff re-alleges and incorporates by reference all preceding paragraphs 1 - 10 as if fully set forth herein.
18. At all relevant times, Defendant, acting under color of state law, unlawfully detained and arrested Plaintiff without probable cause, in violation of Plaintiff's Fourth and Fourteenth Amendment rights under the U.S. Constitution.
19. On or about December 10, 2020, Plaintiff was wrongfully arrested by Defendant in Pasco County, Florida, without a valid warrant, lawful justification, or probable cause.
20. Plaintiff was held in custody for two (2) days before being released.
21. The false arrest and imprisonment were intentional, reckless, and/or grossly negligent, directly causing harm to Plaintiff.
22. As a direct and proximate result of Defendant actions, Plaintiff has suffered damages including, but not limited to, emotional distress, reputational harm, financial losses, and legal costs.
23. Defendant conduct was willful, wanton, and in reckless disregard of Plaintiff's constitutional rights, entitling Plaintiff to compensatory and punitive damages.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

- Award compensatory damages to Plaintiff for the harm suffered as a result of Defendant's actions in the amount of \$1,000,000.00
- Award punitive damages in the amount of \$500,000.00 to Plaintiff to deter Defendant and others from engaging in similar conduct
- Grant Plaintiff's safe passage to his home state of New York.
- Award Plaintiff's reasonable attorneys' fees and costs incurred in bringing this action;
- Grant such other and further relief as the Court deems just and proper.

Respectfully submitted, on this 4th day of April in the year 2025.

A handwritten signature in black ink, appearing to read 'Matthew Davis', with a large, sweeping flourish extending from the end of the name.

Matthew Aaron Davis
4538 Charter St.
Zephyrhills, FL. 33541
656-212-3599
DavisMatthewA@gmail.com

April 4, 2025

**IN THE UNITED STATES FEDERAL COURT IN THE
MIDDLE DISTRICT OF FLORIDA**

Tampa Division

DAVIS, MATTHEW

Plaintiff,

v

SHERIFF CHRIS NOCCO, in his
official capacity as Sheriff of Pasco
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Office,
Defendant.

Case No.: 8:24-cv-02907

Certificate of Service

CERTIFICATE OF SERVICE

I, Matthew Aaron Davis, hereby certify that on this 4th day of April year 2025, I served a true and correct copy of the following documents:

- Amended Complaint under Title 42 U.S.C. statue 1983.
- Certificate of Service

Additionally, I certify that the aforementioned documents have been electronically filed with the Clerk of Court for the United States District Court, Middle District of Florida, via the Clerk of Court, which will send a notice of electronic filing to all

counsel of record. I declare under penalty of perjury, under the laws of the United States of America, that the foregoing is true and correct.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Matthew A. Davis', with a stylized flourish at the end.

Matthew Aaron Davis

4538 Charter St.

Zephyrhills, FL 33542

Phone: 655-212-3599

Email: DavisMatthewA2024@gmail.com

Date: April 4 , 2025